

1 ENGROSSED HOUSE
2 BILL NO. 3406

By: Kelley, Patzkowsky, and
Adams of the House

3 and

4 Hines of the Senate
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6

7 An Act relating to agriculture; amending 2 O.S. 2021,
8 Section 16-26, as amended by Section 1, Chapter 217,
9 O.S.L. 2024 (2 O.S. Supp. 2025, Section 16-26), which
10 relates to emergency drought conditions and burning
11 prohibitions; changing the required conditions for an
12 extreme fire danger; and declaring an emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 2 O.S. 2021, Section 16-26, as
15 amended by Section 1, Chapter 217, O.S.L. 2024 (2 O.S. Supp. 2025,
16 Section 16-26), is amended to read as follows:

17 Section 16-26. A. 1. It is unlawful for any person to set
18 fire to any forest, grass, range, crop, or other wildlands, or to
19 build a campfire or bonfire, or to burn trash or other material that
20 may cause a forest, grass, range, crop or other wildlands fire in
21 any county, counties or area within a county where, because of
22 emergency drought conditions, there is gubernatorially proclaimed
23 extraordinary danger from fire, unless the setting of any backfire
24 during the drought emergency is necessary to afford protection as
determined by a representative of the Division of Forestry Services,

1 or unless it can be established that the setting of the backfire was
2 necessary for the purpose of saving life or property. The burden of
3 proving the necessity shall rest on the person claiming a defense.

4 2. The Division of Forestry Services shall advise the Governor
5 when the lands described in paragraph 1 of this subsection in any
6 county, counties, or area within a county of this state, because of
7 emergency drought conditions, are in extraordinary danger from fire.
8 The Governor may, by proclamation, declare a drought emergency to
9 exist and describe the general boundaries of the area affected.

10 3. Any proclamation promulgated by the Governor under authority
11 of this subsection shall be effective immediately upon the
12 Governor's signed approval of the emergency proclamation and shall
13 supersede any resolution passed by a board of county commissioners
14 pursuant to subsection B of this section. Notice of the
15 proclamation shall occur through posting on the Oklahoma Department
16 of Agriculture, Food, and Forestry's website and informing local
17 news media. Evidence of publication or posting as herein provided
18 shall be maintained by the ~~Forestry~~ Division of Forestry Services.

19 4. When conditions warrant, due notice of the termination of
20 the emergency shall be promptly made by proclamation, which shall be
21 published or posted in like manner as when officially declared.

22 5. Any person who violates this subsection is guilty of a
23 misdemeanor punishable by a fine of not more than One Thousand
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1 Dollars (\$1,000.00), by imprisonment for not more than one (1) year,
2 or both.

3 B. 1. It is unlawful for any person to set fire to any forest,
4 grass, range, crop or other wildlands, or to build a campfire or
5 bonfire, or to burn trash or other material that may cause a forest,
6 grass, range, crop or other wildlands fire in any county of this
7 state in which the board of county commissioners of the county has
8 passed a resolution declaring a period of extreme fire danger. As
9 used in this subsection, "extreme fire danger" means:

10 a. ~~all three~~ either a red flag warning by the National
11 Weather Service (NWS) has been issued, or

12 b. at least three of the following conditions are
13 present:

14 (1) ~~severe, extreme, or exceptional~~ drought
15 conditions exist as determined by the ~~National~~
16 ~~Oceanic and Atmospheric Administration (NOAA)~~
17 U.S. Drought Monitor (USDM) pursuant to its
18 criteria,

19 (2) no more than one-half (1/2) inch of precipitation
20 is forecast for the next three (3) days, ~~and~~

21 (3) ~~either of the following:~~

22 ~~(a) fire occurrence is significantly greater~~
23 ~~than normal for the season and/or initial~~
24 ~~attack on a significant number of wildland~~

~~fires has been unsuccessful due to extreme
fire behavior, or
(b) where data is available, more than twenty
percent (20%) of the wildfires in the county
have been caused by escaped debris or
controlled burning, or~~

~~b.~~

a portion of the county has a Keetch-Byram
Drought Index (KBDI) rating of 600 or higher,

(4) temperatures for any day over the next three (3)
days are forecasted at or over one hundred (100)
degrees Fahrenheit,

(5) the National Weather Service Center's Fire
Weather Outlook forecasts fire weather conditions
for a portion of the county to be elevated or
higher for any of the next three (3) days, or

(6) the local National Weather Service Forecast
Office for the county predicts Red Flag Warning
criteria could be met at any point over the next
seven (7) days.

2. A majority of the board of county commissioners may call an emergency meeting at any time to pass or revoke a resolution declaring a period of extreme fire danger in accordance with this section.

1 3. A board of county commissioners shall have ~~the~~ documented
2 ~~concurrence of a majority of the chiefs, or their designees, of the~~
3 ~~municipal and certified rural fire departments located in the county~~
4 that a period of extreme fire danger exists prior to passage of a
5 resolution declaring a period of extreme fire danger in the county.
6 The resolution shall be effective for a period not to exceed
7 ~~fourteen (14)~~ eight (8) days from the date of passage by the board
8 of county commissioners, unless the burn ban is removed earlier by
9 the same method by which it was approved. If extreme fire danger
10 conditions persist, subsequent resolutions may be passed by the
11 board of county commissioners in the same manner as provided in this
12 paragraph. The board of county commissioners, in the resolution,
13 may grant exceptions to the fire prohibition based on appropriate
14 precautionary measures.

15 4. A board of county commissioners shall not be liable for
16 damages incurred as a result of a vote taken, or in absence of a
17 vote taken, pursuant to the provisions of this subsection.

18 5. Agricultural producers burning cropland, rangeland, forests
19 or pastures as a preferred method of managing their property shall
20 be exempt from any resolution passed by a board of county
21 commissioners that declares a period of extreme fire danger so long
22 as the agricultural producers have complied with the following
23 procedures:
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- 1 a. submit a written prescribed burn plan to the local
2 fire department and, if within a protection area, the
3 local office or local representative of the ~~Forestry~~
4 Division of Forestry Services of the Oklahoma
5 Department of Agriculture, Food, and Forestry nearest
6 the land to be burned that shall include the following
7 information:
- 8 (1) the name and telephone number of the agricultural
9 producer conducting the burn,
 - 10 (2) the address and legal description of the area to
11 be burned,
 - 12 (3) the objective and purpose of the burn,
 - 13 (4) a list of fire departments and sheriff's offices
14 that are required to be notified pursuant to
15 subparagraph c of this paragraph,
 - 16 (5) a list of adjoining landowners required to be
17 notified pursuant to Section 16-28.2 of this
18 title,
 - 19 (6) a description of any firebreaks used to define
20 the boundary of the prescribed burn,
 - 21 (7) a statement of prescribed weather conditions,
 - 22 (8) a description of any smoke-management
23 considerations, and
 - 24 (9) an ignition plan for the burn,

- 1 b. keep a copy of the written prescribed burn plan
2 provided for in subparagraph a of this paragraph on
3 site when conducting the prescribed burn,
4 c. notify the county sheriff and the dispatch center of
5 the local fire department prior to conducting the
6 prescribed burn, and
7 d. comply with the notification procedures outlined in
8 Section 16-28.2 of this title.

9 ~~5.~~ 6. The prescribed burn plan provided for in paragraph 4 5 of
10 this subsection shall be deemed approved seventy-two (72) hours
11 after submission to the local fire department; provided, that the
12 local fire department may amend the submitted burn plan within
13 seventy-two (72) hours after submission.

14 ~~6.~~ 7. The prescribed burn plan provided for in paragraph 4 5 of
15 this subsection shall not include campfires, household trash, debris
16 or pile burning.

17 ~~7.~~ 8. Nothing in paragraph 4 5 of this subsection shall
18 supersede requirements set by a proclamation promulgated by the
19 Governor under authority of this section, interfere with the
20 authority of the Oklahoma Department of Agriculture, Food, and
21 Forestry to enforce burning laws or change the burner's liability as
22 prescribed by law.

23 ~~8.~~ 9. Any resolution passed by a board of county commissioners
24 under authority of this subsection shall be effective immediately

1 upon passage of the resolution. Notice of the resolution shall be
2 submitted to the ~~Forestry~~ Division of Forestry Services of the
3 Oklahoma Department of Agriculture, Food, and Forestry, all local
4 news media, local law enforcement officials, and the state
5 headquarters of the Department of Public Safety (DPS), the Oklahoma
6 Tourism and Recreation Department (OTRD), and the Oklahoma
7 Department of Wildlife Conservation (ODWC) on the day of passage of
8 the resolution. Evidence of publication or posting as provided in
9 this paragraph shall be maintained by the county.

10 ~~9.~~ 10. The provisions of this subsection may be enforced by any
11 law enforcement officer of this state.

12 ~~10.~~ 11. Any person convicted of violating the provisions of
13 this subsection shall be guilty of a misdemeanor and shall be
14 subject to a fine of not more than Five Hundred Dollars (\$500.00),
15 to imprisonment for not more than one (1) year, or to both such fine
16 and imprisonment.

17 ~~11.~~ 12. The selling of fireworks shall not be considered an act
18 in violation of this subsection.

19 ~~12.~~ 13. All fire departments and appropriate county officials
20 shall be allowed to place "Burn Ban" signs on agreed-upon signposts
21 controlled by the Oklahoma Department of Transportation and Oklahoma
22 Turnpike Authority (OTA). Fire departments and appropriate county
23 officials shall work with the Oklahoma Department of Transportation
24 to agree upon locations for signage. The Oklahoma Department of

1 Transportation shall develop standards that fire departments and
2 appropriate county officials shall adhere to in placing signage. It
3 shall be the responsibility of the entity placing the sign to post
4 and remove signage in a timely manner. Signage shall not obstruct
5 the view of traffic. Signage costs shall be the responsibility of
6 the fire department or county wishing to install.

7 SECTION 2. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 Passed the House of Representatives the 9th day of March, 2026.

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Presiding Officer of the House
of Representatives

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Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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